

Diverse Technology Korps, Inc. and
Systems Application and Technologies, Inc.

AND



DISTRICT LODGE NO. 75
INTERNATIONAL ASSOCIATION OF MACHINISTS
AND AEROSPACE WORKERS

at

Fort Rucker, AL

EFFECTIVE

March 6, 2023 through December 15, 2026

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Preamble

This agreement has been entered into by and between Diverse Technology Korps, Inc. (DTK) and subcontractor Systems Application & Technologies, Inc.(SA-TECH) located at Fort Rucker, AL (hereinafter the "Company" and / or the "Employer"), and District Lodge 75 of the International Association of Machinists and Aerospace Workers, AFL-CIO, hereinafter referred to as the "Union".

It is understood wherever in this Agreement, employees, or jobs are referred to in the male or female gender, it shall be recognized as referring to both males and females.

ARTICLE 1 Union Recognition

Section 1.01. The Company recognizes the Union as the sole and exclusive Collective Bargaining agency for the purpose of Collective Bargaining with respect to rates of pay, hours of work, and other conditions of employment pursuant to Sections 9(a) of the National Labor Relations Act and the certifications of representation in:

- A. For all full time and regular part-time labor categories listed in Article 31 at Fort Rucker, AL on the AGRC contract; excluding all professional employees, managerial employees, human resources specialists, IT specialists, production supervisors, guards, and supervisors as defined in the Act.

Section 1.02. The Company acknowledges the Union's rights especially designated by the terms of this Agreement as the employees' representative. It is recognized by the Agreement to be the duty of the Company, the Union, and the employees to cooperate fully, both individually and collectively, for the advancement of said work conditions, and to provide a grievance procedure for the settlement of the employees' grievances.

Section 1.03. The Union recognizes that the Company is a contractor to the U.S. Army and that the Company is required at all times to meet its contractual obligations. The Union and the Company agree to comply with the legal requirements that the Army may impose on the Company and its employees.

ARTICLE 2 Government Security

Section 2.01. The Company and all representatives of the Union having access to the premises and all employees are required to comply with applicable Government security regulations when on Government property and/or performing work for the Government. Employees working on the program must submit to appropriate security screenings and searches and must apply for, receive, and maintain any required Government clearances. The Company and the Union agree that security information will be revealed only to persons properly cleared and required by the Government to have the information.

In the event that the Government revokes, suspends, or refuses required security clearances, Identification Badges, Contractor Identification Cards, or other required credentials to perform work on Fort Rucker, AL on the AGRC contract or any of its associated locations, the Company will comply with the Government's requirements which may include removing employees from the Base and work areas and terminating their employment, after such employees have been afforded the opportunity to reverse such actions.

Section 2.02. In the event an employee's security clearance is found by an appeal to have been incorrectly revoked, the Company shall reinstate the seniority of the employee and reinstate them to their previously held job classification or occupational title.

ARTICLE 3

Management Rights

Section 3.01. The Employer retains and possesses all rights and powers not expressly limited by the written provision of this Agreement, including but not limited to the exclusive right to direct the working force; the right to plan, direct, expand, reduce and control operations; to hire, transfer discipline and discharge employees for just cause; to relieve employees of duty; the right to introduce any new or improved methods, procedures, equipment or facilities; to establish, modify and enforce rules and regulations for the operation of the business and for the orderly conduct of employees; determine or change methods of doing business; create new jobs or job classifications; discontinue, realign or consolidate existing job classifications as per the Performance Work Statement and determine the particular jobs or occupations to be filled; terminate, merge, transfer, sell or otherwise dispose of the business in whole or in part, its assets or any part thereof; select and determine the number or type of employees required and their qualifications; establish and maintain job requirements, standards and schedules of production; establish and administer a policy requiring employee submission to alcohol and drug testing; to promote employees to positions outside the bargaining unit; to subcontract any work deemed advisable; and the right to take on work from whatever source is available.

ARTICLE 4

Union Bulletin Boards

Section 4.01. The Company will provide two (2) bulletin boards for the Union to post official business of the Union at each location where the Company posts official notices for employees (one at 24314 and one at 24309). The Union will be responsible for ensuring the material posted is current. Legitimate union notices are defined as:

- A. Meeting notices
- B. Official union election results
- C. Notices of union appointments

D. Union social events

E. Union Benefit Programs

Section 4.01. It shall be the responsibility of the shop steward, Committee person, or Union officer to post authorized notices and such notices shall include only those specified above. The shop steward shall obtain permission from his supervisor immediately prior to posting such notices outside of designated break or lunch times. Such notices shall have suspense dates and shall be removed by the shop steward.

ARTICLE 5

Information to be provided to the Union

Section 5.01. Information to be furnished by the Company upon request of the Union shall be:

- A. A list of employees showing pay rates, classification, dates of hire.
- B. The current mailing address for all employees in the bargaining unit.
- C. Upon hiring an employee, the Company, within ten business days of the commencement of his employment, shall notify the Union, and provide information as per above.
- D. Insofar as is practicable prior to the date of layoff, the anticipated date, the approximate size, and the probable occupation(s) affected.
- E. Insofar as is practicable prior to the date of layoff, the anticipated date, the approximate size, and the probable occupation(s) affected.

ARTICLE 6

Alteration of Agreement/Savings Clause

Section 6.01. No agreement, alteration, understanding, variation, waiver or modification of any of the terms, conditions, or covenants contained herein shall be made by any employee or group of employees with the Company and in no case shall it be binding upon the parties hereto unless such agreement is made and executed in writing between the parties.

Section 6.02. The parties agree that as of the effective date of this Agreement, there are no existing practices or customs binding on either party if not included in the clear language of this Agreement.

Section 6.03. The waiver of any breach or condition of this Agreement by either party shall not constitute a precedent in the future enforcement of all the terms and conditions herein.

Section 6.04. In the event that any federal or state legislation, governmental regulations, or court decision causes invalidation of any Article or Section of this Agreement, all other Articles and Sections not so invalidated shall remain in full force and effect.

Section 6.05. Within thirty (30) days, the Company and Union shall meet to negotiate new contract language to replace the particular clause(s) invalidated as stated in Section 6.04.

ARTICLE 7

Coverage

Section 7.01. This Agreement shall be binding upon the parties hereto, their successors, administrators, and executors. The Company shall notify the Union prior to any change in ownership, as soon as possible and legally allowable.

ARTICLE 8

Absence from Work

Section 8.01. Employees shall not be absent from work without prior permission from their Site Supervisor, except in cases of illness, injury, or reasons beyond the control of the employee. Giving a false reason for an absence shall be cause for disciplinary action.

Section 8.02. It is the duty of every employee who, for any reason, will be absent from work on a scheduled workday, or who expects to report for work late, to notify the Company of the reasons therefore, in accordance with the procedures outlined by the Company. Such notice shall be at least one hour (60) minutes prior to the start of the shift, whenever possible, or as soon as possible thereafter. Communication to alert direct lead or superior of pending absence or lateness must be acknowledged.

Section 8.03. Should an employee fail to notify the Company of the reason for absence as soon as reasonably possible to do so and fail to report for work for three (3) consecutive scheduled work shifts, the employee will be considered to have resigned his employment with the Company and will be terminated for job abandonment.

ARTICLE 9

Strikes and Lockouts

Section 9.01. The Union agrees that it shall not engage in, authorize or recognize any strikes, picketing or other interruption of the Company's normal operations during the term of this Agreement; the Company agrees that it shall not lock out the employees during the term of this Agreement.

ARTICLE 10

Seniority

Section 10.01. Bargaining Unit Seniority means continuous service with the Company at Fort Rucker, AL on the AGRC contract, including the whole span of continuous service with the present contractor, successors, and with predecessor contractors, in the performance of similar work. Any employee hired into the Bargaining Unit would have their seniority date established as their date of hire.

Section 10.02. Employees transferring into the Bargaining Unit who have continuous service with the Company will retain the Company date of hire only for the purposes of PTO accrual. Their date of transfer would also establish their Bargaining Unit seniority date on this CBA as their date of hire on the Fort Rucker, AL on the AGRC contract, for all other purposes of seniority.

Section 10.03. The Company will apply seniority in its everyday operation relating to transfer, PTO, layoff and recall, and other terms and conditions of employment of the Bargaining Unit.

- A. Insofar as possible, and for the purpose of education, the Company at it's sole discretion may allow special or modified shifts to meet the needs of the employee while attending school.

Section 10.04. A new employee shall be in a probationary status until they have completed ninety (90) calendar days from the most recent date of hire. Time spent on leaves of absence will not be considered part of this probationary period. During this period the Company may transfer, layoff, discipline, or discharge such employee at will and such action shall not be reviewable through the grievance procedure.

After ninety (90) days, the employee will be placed on the seniority roster and his seniority date will revert to the original date of hire. Seniority order for employees with common hire dates will be determined by their date of birth.

Section 10.05. Loss of seniority will result under the following:

- A. Resignation or quit.
- B. Retirement.
- C. Discharge for just cause.
- D. Failure to return from a leave of absence as approved.
- E. Layoff in excess of thirty-six (36) months.
- F. Failure by the employee to notify the Company of the employee's intention to return to work in response to a recall notification within seven (7) calendar days after verifiable receipt of such recall notice, and the employee's

return to work within fourteen (14) calendar days following the receipt of such notice.

- G. Transfer or promotion out of the bargaining unit in excess of sixty (60) calendar days, excluding temporary foreign or domestic assignments associated with this program or military leaves of absence.
- H. Absence from work for three (3) consecutive working days with no contact with the Company, unless excused by the Company.
- I. Acceptance of employment with another employer while on an approved leave of absence.
- J. Absence from work due to a workers' compensation claim in excess of twelve (12) months.
- K. Absence from work due to an approved medical leave in excess of twelve (12) months

Section 10.06. The Union will post a seniority list once every six (6) months (twice a year). The list will show each employee's name, hire date and classification.

Section 10.07. When reducing the workforce, the Company will layoff the least senior persons in each affected classification. An employee shall have the right to bump back into a previously held classification, should seniority permit. In recalling laid off employees to new vacancies, the most senior employee who previously held that classification laid off will be the first recalled.

Section 10.08. The Company will notify the Union and the employees affected of pending layoffs at least ten (10) work days prior to layoff, if possible to do so. Affected employees will be given a layoff notice and will be responsible for notifying the Company of their current address or any address change.

ARTICLE 11

Promotions, Bidding/Transfers

Section 11.01. A bargaining unit employee who bids and is promoted or transferred and fails to satisfactorily perform the duties of the new job within a period up to ninety (90) calendar days, (unless extended by mutual written agreement of the parties) will be returned to the position last held prior to the award of such promotion, provided the position has not been abolished.

Section 11.02. When a bargaining unit job vacancy occurs within the Company at Fort Rucker, AL on the AGRC contract, the vacancy shall be posted for five (5) workdays. The notice will contain:

- Title of the job

- Wage rate
- Shift/work schedule
- Normal and special requirements/certifications/qualifications
- Date and time after which bids will no longer be accepted

Bids must be in writing and presented to the Program Manager or Company Designated Representative who will affix the date and time to validate a timely filing. Bids received after the closing date will not be considered. Employees who have an active Disciplinary Action with a Suspension of 3 days or Last and Final Warning will not be considered for promotion for twelve (12) months.

Section 11.03. The employee awarded the bid will be notified and will report for work on the new job as of the effective date stated by the Company. Permanent vacancies in each job classification which the Company decides to fill shall be posted for Company-wide bidding for five (5) consecutive days. Employees desiring to bid on the job shall provide, in accordance with the posting, whatever information they feel qualifies them for the job including name, department, job classification, and previous experience. Full time employees will get preferential consideration over part-time. The Employer shall determine if any of the employees bidding on the job are qualified by considering the following factors:

- (a) Present skill and ability to perform the work;
- (b) Previous experience, knowledge, and training;
- (c) Attendance and work record; and
- (d) Bargaining Unit seniority.

In the event the employee with the most facility seniority bidding on the job is not selected, the Company agrees to meet and confer with the Union regarding the reasons for the selection.

ARTICLE 12 Outsourcing

Section 12.01. The parties agree that the Company has the right to outsource any work that is not in violation of this agreement or directed by the government for business necessity or otherwise directed by the US Army.

ARTICLE 13 Shop Stewards

Section 13.01. It is hereby understood and agreed that the Union may assign a Steward for each company on the day shift and other Stewards as needed,

which may include an alternate Steward(s). The alternate Steward(s) shall only act in the absence of the Steward. The Union shall notify the Company in writing of the individuals so selected in this capacity.

Section 13.02. Subject to other provisions of this Agreement, the Company will authorize the Stewards, reasonable and necessary time off from work during straight time work hours without loss of pay or benefits to permit the Stewards to carry out his/her responsibilities under the grievance procedure to employees in their area of representation, providing the carrying out of these responsibilities will not unreasonably interfere with the Company's obligation to the customer or the assigned work duties of the Shop Steward or the employee involved. Instances of alleged abuse or misuse of time by the Shop Steward shall be brought to the attention of the Union, which shall take the action necessary to correct the problem.

Section 13.03. When the Steward finds it necessary to discuss a problem or a labor and management disagreement with a unit employee and/or management official, the Steward shall request permission from the Program Manager, Sr. Operations Tech or Facilities Maintenance Manager to leave his/her work assignment. The Program Manager, Sr. Operations Tech or Facilities Maintenance Manager permission will be granted unless he determines compelling work commitments dictate otherwise. If permission is initially denied, the supervisor shall establish an alternate time, which shall normally be no later than the end of the workday, at which time the Steward can contact the employee.

Section 13.04. The scope of the Steward's activities on Company time shall be limited to a reasonable amount of time for the following. This will be subject to discussion between the Union and the Company should alleged abuse of time be suspected:

- A. To consult with an employee regarding an alleged grievance or the presentation of a grievance for which the employee desires the Steward to be present.
- B. To investigate an alleged grievance or a grievance of record before presentation to the Site Supervisor or Company Designated Representative.
- C. To present an alleged grievance or a grievance to the Site Supervisor in an attempt to settle the matter for the employee or group of employees who may be similarly affected.
- D. To meet with the Site Supervisor or other designated representative of the Company when necessary to adjust grievances in accordance with the grievance procedure of this Agreement.
- E. To attend a meeting when requested by an employee who has reasonable belief that such meeting may result in discipline.

Section 13.05. It is agreed that the Company shall not be required to pay an employee for any time away from work to serve the Union in any official capacity or to serve on any Union committee, except as provided in this Agreement. The

absence of an employee for such work with the Union must be limited to no more than ten (10) consecutive workdays and only one (1) employee may be gone.

Section 13.06. The Company agrees that it will allow a Union steward to provide new bargaining unit employees an orientation for at least fifteen (15) minutes to introduce the organization and distribute Union literature. It is also agreed that the time allotted to the Union Steward will be within the first week of employment.

ARTICLE 14

Visitation

Section 14.01 Accredited full time Representatives of the Union shall upon notification to the Site Supervisor be admitted to the site by the Company during working hours for the purpose of ascertaining whether or not this Agreement is being observed by the parties or for assisting in the adjusting of grievance or disputes provided that such activities shall be exercised reasonably and will not interfere with the normal conduct of the Company's operations. The Company will aid Union representatives gain base access. All Union representatives shall comply with U.S. Army or other government agencies' instructions as required of all visitors.

ARTICLE 15

Safety and Health

Section 15.01. The Company shall provide and maintain a safe and healthy workplace, it will provide programs, training, and systems which seek to prevent and eliminate industrial injuries and illnesses. Where noxious and poisonous gases may accumulate, the employer shall provide proper protection and ventilation. Any other special protective clothing or safety equipment required by the U.S. Army or Company shall also be provided. Employees will be reimbursed up to \$180.00 every 18 months during this agreement, by filing an expense report with receipts, for the purchase of safety shoes.

Section 15.02. An employee's refusal to perform work which is in violation of established health and safety rules or any local, state, or federal health and safety law shall not warrant disciplinary action. No employee shall be subject to any discipline, of any kind, for reporting a safety hazard or injury.

Section 15.03. The Company shall maintain first-aid kits to care for its employees in case of injury. When an employee at work requires immediate medical attention by a medical practitioner or at a hospital and the employee is not able to provide his own transportation to the treatment facility, the Company will provide the transportation at no cost to the employee, to and from the employee's work location. If such employee returns to the work site too late to use his normal transportation home, the Company will provide such transportation at no cost to the employee as well.

Section 15.04. No employee shall be required to work in areas of a plant or shop where conditions exist detrimental to health until such conditions have been removed or remedied. However, an employee may be required, once proper protection

and training is obtained, to remedy or to assist in a remedy for such conditions as may be unsafe or unhealthy. Employees who violate safety rules, safety regulations, or safety policies of the Company, the Army, or OSHA shall be subject to disciplinary action.

Section 15.05. To the extent that the Union has not influenced improper actions of the employee or the Company, nothing contained in this Article shall be construed to create or give rise to a claim by an employee that the Union was responsible for any failure of the Company to comply with its obligations to provide a safe and healthy work environment.

ARTICLE 16

Non-Bargaining Unit Work

Section 16.01. The Company shall insure that personnel not covered by this Bargaining Agreement shall not normally perform work of the nature normally and historically performed by bargaining unit employees, other than as described in Section 16.03.

Section 16.02. Bargaining unit employees shall not be expected to train non-bargaining unit employees if such training could result in bargaining unit employees being laid off or replaced by those trained.

Section 16.03. Employees of the Company who are excluded from the bargaining unit will be permitted to perform work normally performed by bargaining unit employees for the following reasons only.

- A) Instruction and training of employees;
- B) When a qualified employee is not readily available;
- C) When required for reasons of safety and/or security;
- D) When required to ensure the satisfaction of the Company's obligations and responsibilities under its government contract;
- E) When necessary to maintain currency of, or to obtain, a needed license, certification or qualification;
- F) An emergency;
- G) In the development, research, testing, and start-up of any equipment or process;
- H) At the direction of the Government

In this regard, the Company shall make every reasonable effort to limit such assignments to a minimum, provided qualified employees can be obtained. Nothing herein shall be construed as authorizing any assignment of unit work to exclude employees which result in the layoff of a bargaining unit employee and/or inhibiting the growth of the bargaining unit.

ARTICLE 17

Discrimination

Section 17.01. The Company will not interfere with, restrain or coerce the employees covered by this Agreement because of Union membership in, or activity on behalf of the Union. The Company will not discriminate against any employee covered by this Agreement in respect to hire, tenure of employment, or any term or condition of employment, because of membership in, or activity on behalf of, the Union, nor will it discourage or attempt to discourage membership in the Union or attempt to encourage membership in another union.

Section 17.02. The Company shall not discriminate against any employee in violation of any State and/or Federal rules, regulations, and laws, covering discrimination of any nature, currently enacted, or as may be enacted. Any and all violations of this clause will be subject to the grievance and arbitration procedures as provided elsewhere in this Agreement.

ARTICLE 18

Discipline and Discharge

Section 18.01. Disciplinary action shall be initiated by the Company only for just cause and any penalty imposed shall be consistent with proven offenses. It is agreed that in order to consider that an employee has been disciplined, the employee and the Steward, shall be furnished a duplicate copy of any disciplinary material inserted in his personnel file.

Section 18.02. Prior to taking disciplinary action (Verbal counseling, letter of caution, letter of suspension, or letter of dismissal) against any employee in the unit, the affected employee will be advised of his/her right to Union representation by a Shop Steward. There shall be no investigative interview, which an employee reasonably believes could lead to disciplinary action without the Union Shop Steward being present if requested by the employee. If employee refuses representation, he shall sign a waiver to that effect and a copy will be provided to the Union. If a Shop Steward is requested but not available, such investigative interviews will be postponed until a Shop Steward can be present.

Section 18.03. The progressive discipline process may begin from a different step, according to severity of an employee's misconduct:

Step One: Counseling Action – Documented Verbal Warning

Performance issues.

Examples are but not limited to:

- Absenteeism.
- Disregarding deadlines.
- Lack of knowledge of Health & Safety standards.

Minor offenses (one-time)

Examples are but not limited to:

- On-the-job minor mistakes.
- Breach of dress code or smoking policy.

Step Two: Disciplinary Action – Written Warning

Serious misconduct and/or repeating an offense for which a progressive discipline procedure already took place.

Examples are but not limited to:

- On-the-job major mistakes.
- Rudeness to customers or partners.
- Unwillingness to follow Health & Safety standards.

Severe violations.

Examples are but not limited to:

- Offensive behavior.
- Retaliation against an employee.

Step Three: Disciplinary Action – Suspension

- This is the final step before termination and can be skipped if the offense is deemed terminable by the Company. In this stage, the employee continues serious misconduct and/or repeating an offense for which a progressive discipline procedure already took place. The suspension is determined by the Company Management and can be up to 5 days. If at the conclusion of the suspension it is determined that the behavior has not been corrected or has been repeated by the employee, the Company reserves the right to immediately terminate. Continuation of offense to which the employee has already received verbal counseling.

Step Four: Termination

Employees who continue to violate company policies, either voluntarily or involuntarily, by this stage will be terminated. Employees engaged in illegal behavior or violation of the substance control policy are immediately addressed at this step and the Company will terminate for cause.

Examples are but not limited to:

- Substance Abuse.
- Corruption/Bribery.
- Sexual Harassment.
- Workplace Violence.
- Embezzlement/Fraud.

Infractions for Step 1 and Step 2 will not be considered for the purpose of progressive discipline after six (6) months from the time of notice. Infractions for Step 3 infractions will not be considered active for the purpose of progressive discipline after 24 months.

Section 18.04. Serious offenses shall be dealt on the basis of their severity. It is

understood and agreed that any disciplinary action issued to an employee by the Company shall be issued within ten (10) workdays (Mon-Fri) following knowledge by the Company of the occurrence of the alleged violation(s). The above specified time limit may be extended by written mutual agreement between the Company and Union. If an investigation is necessary prior to imposing discipline, the employee will be placed on an Administrative Leave with pay during the investigation. This is intended to allow the Company to investigate the issues and determine appropriate disciplinary action.

ARTICLE 19

Grievance Procedure and Arbitration

When an employee or the Union collectively, has a grievance against the Company, it shall be processed in accordance with the following:

Section 19.01. Step 1: An employee believing he has cause for a grievance may, at his option, discuss the issue directly with his Sr. Operations Tech or Facilities Maintenance Manager in an attempt to settle the grievance or may take it up with his representative who shall discuss the issue with the employee's Sr. Operations Tech, Facilities Maintenance Manager or Program Manager. This step must occur within five (5) working days following the event(s) giving rise to the grievance. Both parties recognize the desirability of settling problems promptly through full discussion. Every effort will be made to resolve differences at the oral stage of the procedure and any resolution at this step shall be non-precedent setting.

Sr. Operations Tech, Facilities Maintenance Manager or Program Manager shall answer within five (5) working days. If the issue is not resolved orally, the grievance shall be submitted in writing to the Program Manager within five (5) working days from the Sr. Operations Tech or Facilities Maintenance Manager response to the Oral Grievance presentation, or the grievance shall be forever time barred.

Section 19.02. Step 2: Within five (5) working days of the Sr. Operations Tech or Facilities Maintenance Manager response to the Oral grievance, the Union Representative may appeal the grievance in writing to the contract's Program Manager or his designee. The written grievance must specify the Article and Section, or State or Federal Law alleged to have been violated; must be signed by the aggrieved employee or Union representative and must specify the remedy sought.

The contract's Program Manager or his designee shall discuss the grievance with the representative within two (2) weeks of receipt and shall respond in writing within five (5) working days following the discussion. The meetings may be held via telephone or other electronic means during Step 2 and Step 3 of this grievance process.

Any dispute about interpretation of this Agreement, Suspension and Discharge cases shall begin at Step 2 of this grievance procedure and within ten (10) workdays from knowledge of the Incident.

Section 19.03. Step 3: If it is desired to appeal the grievance, a copy of the grievance appeal will be presented to the Company Representative/Human Resources or his/her designee within five (5) working days after the Company's Second Step response is received by the Union or the grievance shall be forever time barred. The Company Representative/Human Resources or his/her designee's final written answer will be given to the Union Representative within ten (10) working days following appeal.

Section 19.04. Step 4. Arbitration: Any grievance that has not been settled pursuant to this article, of this Agreement, may be referred to arbitration. If the Union fails to inform the Company within twenty (20) working days from the date of the Company's final decision that it desires to submit the matter to Arbitration, the grievance shall be forever time barred. If the Union makes a timely appeal, the Union shall within ten (10) calendar days, ask the Federal Mediation and Conciliation Service to submit a panel of seven (7) arbitrators.

A coin shall be flipped to determine which party shall strike a name from the panel first, after which the parties shall alternatively cross off names until only one (1) name remains, and he/she shall be the arbitrator for that specific grievance.

The arbitrator shall make a written decision in accordance with the evidence presented to him/her by the parties. The decision of the arbitrator shall be final and binding on all parties. However, the arbitrator shall not have jurisdiction or authority to add to, subtract from, modify or in any way change the provisions of the Agreement.

The expense of the arbitration, including the fees and the expense of the arbitrator and the costs of the meeting room, shall be shared equally by the Company and the Union. The Company and the Union shall each pay the expenses of their own representatives and witnesses. The parties will conduct arbitration cases at a location within twenty-five (25) miles of Fort Rucker, AL on the AGRC contract, unless otherwise agreed upon.

Section 19.05. The time limits and procedures provided for in this Article for the presentation and appeal of a grievance at any step are absolute. The Union's failure to follow the time limits set forth herein precludes any further action on the grievance. Should the Company fail to follow the time limits established herein, the written grievance will be considered settled on the terms/remedy set forth in the grievance form. It is understood that the time limits specified herein may be extended by mutual agreement of the parties.

ARTICLE 20

Installation of New Job Classifications

Section 20.01. The company may, in light of changed conditions, implement new or revised existing job classifications. However, in assigning new duties or deleting duties from a classification, if such additions or deletions are a part of the

functional responsibilities of the position, the principle of equal pay for substantially equal work shall apply. The Company shall negotiate with the Union concerning wage rates for any such new or revised classification.

Section 20.02. When new bargaining unit jobs are required that cannot be properly encompassed within an existing job classification, the Company will notify the Union of the requirements and the Company and the Union shall collectively bargain the new classification rate of pay. The Company may institute its proposed rate of pay until such time as a wage rate is reached by collective bargaining.

Section 20.03. If the parties are unable to reach agreement after bargaining to impasse, at the request of either party, the parties can go to mediation in attempt to reach a settlement. In such case, a mediator may be requested from FMCS or from a private agency as the parties agree. The parties will equally share the fees and costs of the mediator and the costs for a room to hold the hearing. Each party will pay the cost of presenting their own case including payment of witnesses, if applicable.

ARTICLE 21

Check-Off

Section 21.01. Union Security. All employees within the bargaining unit defined in Article 1 shall become members of the Union within ninety (90) days following the execution of this Agreement and shall thereafter maintain their membership in good standing in the Union during the life of this Agreement, as a condition of continued employment.

Section 21.02. Satisfaction of Obligation. Employees who are required either to become members of the Union or maintain membership in good standing in the Union, under Section 21.01 of this Article, may satisfy that obligation by periodically tendering to the Union an amount equal to the Union's regular and usual monthly dues, as governed by IAM bylaws/rules.

Section 21.03. Union Payroll Deduction. It is agreed between the Employer and the Union that any employee in the bargaining unit defined in the Preamble of this Agreement, who is or may hereafter become a member of the Union, or pays an agency fee, may authorize the collection of Union dues or agency fees by the signing of a payroll deduction form. The employee's authorization shall be irrevocable for a period of one (1) year from the date they are signed or until this Agreement expires whichever occurs sooner, irrespective of their membership status in the Union.

A. Deduction of membership dues or agency fees shall be made in a flat sum deduction twice a month to meet total Union dues cost, provided there is a balance in the paycheck sufficient to cover the amount after all other deductions authorized by the employee and will be forwarded to the Secretary-Treasurer of IAM&AW District Lodge 75 by the 10th of the following month.

B.The Employer shall issue all Union payments for Union dues and Initiation Fees via check or electronic transfer of funds.

Section 21.04. Indemnity. The Union will indemnify and hold the Employer harmless from and against any and all claims, demands, charges, complaints, or suits instituted against the Employer which are based on or arise out of any action taken by the Employer in accordance with or arising out of the foregoing provisions of this Article.

Section 21.05. Failure to Satisfy Obligation. In the event an employee, who as a condition of continued employment, is required under this Article to become a member of the Union or maintain his/her membership in good standing therein, but in any such case does not do so, the Union will notify the Employer in writing, through the Human Resources, or through such other office as may be designated by the Employer, of such employee's delinquency. The Employer agrees to advise such employee that his/her employment status with the Employer is in jeopardy and that his/her failure to meet his/her obligation under this Article within thirty (30) days will result in his/her termination of employment.

Section 21.06. Explanation to Employees. Either the Employer or the Union may explain to any employee or call to his/her attention his/her rights and obligations under any or all provisions of this Article.

ARTICLE 22

Illegal Substances/Drug Policy

The Company and the Union are committed to providing employees with a drug-free and alcohol-free workplace. To that end, both parties agree to abide by the Drug-Free Policy:

- All employees will be subject to pre-employment drug screening. Any offer of employment shall be contingent on successfully passing pre-employment drug and alcohol screening.
- Employment Drug Screening to include unannounced random drug screen and drug screens pursuant to any vehicle or other accident/incident.
- Employees shall not use alcohol or other drugs on Company/Government property at any time or off Company property where usage may influence their ability to do their jobs.
- Employee who are taking drugs pursuant to a valid current prescription from a medical doctor that could cause impairment when performing job duties shall immediately upon return to work notify their manager/supervisor. These employees may be restricted from operating heavy equipment, vehicles and other types of equipment that may pose a danger to the employee or others at the sole discretion of the Company.
- Employees convicted of a violation of any criminal drug statute shall notify Human Resources Administrator no less than two (2) days after the conviction.

- Any employee found to be positive during a random, post-incident or for cause drug screen and confirmed by a second lab will be terminated.
- Employees shall not manufacture, distribute, dispense, possess, or use Illegal Drugs (see Definitions below) at any time.

Definitions (not all inclusive):

- Illegal Drug - Any "controlled substance" as defined in Section 802(6) of Title 21 of the United States Code, excluding drugs used pursuant to a valid prescription or used as otherwise authorized by law. Testing for the presence of Illegal Drugs will normally be limited to the following Drugs or classes of drugs (or their metabolites):
 - Marijuana (including THC and Hashish) Due to the safety-sensitive positions on this contract and the requirement to operate heavy equipment, vehicles and other potentially dangerous equipment, marijuana (medical or recreational) is classified as an illegal drug.
 - Opiates (including Heroin, Morphine and Codeine)
 - Amphetamines ("Speed")
 - Phencyclidine (PCP or "Angel Dust")
 - Barbiturates
 - Methaqualone (Quaalude)
 - Benzodiazepine (Valium, Librium)
 - Methadone
 - Cocaine

ARTICLE 23

Employee Training and Education

Section 23.01. It is the policy of the company to encourage the career development of employees and to reimburse within specific guidelines certain educational costs incurred as permitted by IRS regulations. The company recognizes two distinct types of reimbursement areas – Tuition Assistance and Job Training. Tuition assistance applies to four-year college degree programs at accredited colleges and universities in the employee's local area. Graduate degree programs require prior approval from the Chief Operating Officer. Job Training courses and seminars applies to courses at accredited colleges or universities and seminars or classes by accredited training vendors. Correspondence courses are not included.

For Tuition Assistance, the degree program must relate directly and significantly to either the employee's current position or to the area of responsibility/line of work the employee's department is engaged in and must be related to a job or jobs where the company has a reasonable expectation that the employee can move into. For Job Training, the course or seminar must be either client required or directly and significantly related to the employee's present job.

For Tuition Assistance requests, attach current copy of complete degree program description including fee schedule and explanation of grading system. For Job Training requests, attach copy of seminar cost and description. Late submissions improperly completed forms, or failure to submit the appropriate eligibility and course documentation

will delay the approval process and could lead to the employee enrolling in non-reimbursable courses. Course load will be limited to six (6) credit hours or two (2) courses per semester/quarter. Reasonable and customary costs are used to determine maximum tuition assistance/job training reimbursement.

Approval and Reimbursement Process: Employee submits completed Request for Educational Reimbursement and course documentation to supervisor at least thirty (30) days prior to course start date. If supervisor approves course, he/she signs and submits form with documentation to Human Resources (HR) for review. If approved, HR signs form, sends a copy to supervisor, and files a copy in course completion pending file. No later than ninety (90) days after course completion, employee submits to supervisor an official course grade and original receipt for proof of payment of costs incurred. Supervisor forwards to HR and HR requests from Accounting a check to the employee for applicable reimbursement amount.

Reimbursement Schedule: The company will reimburse the employee for tuition, lab fees*, and books* up to the calendar year maximum of \$2,000 upon successful completion of approved courses, as follows:

<u>Course Grade</u>	<u>% of</u> <u>Reimbursement</u>	
A	100%	* Passing client or employer required training will be reimbursed at a rate of 100%. The cost of lab fees and books are reimbursable only for client or
B	90%	
C (or passing a "Pass-Fail" course)	75%	
D or F	0	employer required training.

Eligible employees (1) must hold regular full-time status, (2) have completed six months of service with the company. (3) Cannot be eligible to receive educational assistance from other sources such as the Department of Veterans Affairs. An employee who voluntarily leaves the company or is terminated for cause (1) prior to completing the course is not reimbursed for course expenses, (2) within 12 months of completion of the course must repay the reimbursed amount on a pro-rata basis.

Section 23.02. The Company and the Union jointly agree that it is important for employees to maintain all training requirements. Employees will be notified of scheduled training events by the Program Manager or direct supervisor, and it will be the employee's responsibility to attend the training event as scheduled. The Company shall reimburse the cost of maintaining certifications required for the

performance of their current work. It is the employee's responsibility to maintain currency on all training requirements and update their training records with all appropriate training events and qualification upgrades.

ARTICLE 24

Leave of Absence

Section 24.01. Military Service. Employees will be granted a leave of absence for up to five (5) years in order to serve Active Military Duty in the uniformed services (Active Military Duty), as required by law. This five (5) year period is cumulative over the entire length of employment with the Company.

Pay While on Active Military Duty. Employees who serve on Active Military Duty will receive the difference between their normal wage/salary for a maximum of one month (31 days) following the effective date of their leave. The remainder of their leave will be without pay.

Pay While on Military Drills. Employees who are called to perform their annual military drills will receive the difference between their normal wage/salary for a maximum of eighty (80) hours per year.

The employee must present a copy of the employee's orders to the Company as soon as they are received by the employee. Upon return from active duty, the employee must present pay vouchers so that the calculation of the difference in pay may be computed. Employees required to report for military training excess of one month (31 days) consecutive days will be reinstated in accordance with the Uniformed Service Employment and Reemployment Rights Act. The parties to this Agreement shall comply with current applicable state and federal legislation regarding military service.

Section 24.07. When leaves of absence are granted, the employee, upon return to active employment, will be returned to his/her classification based upon seniority and qualifications provided such job has not been eliminated.

Section 24.08. When an employee fails to return to work at the expiration of an approved leave of absence or accepts gainful employment during a leave of absence without the approval of the Company, that employee shall be discharged.

Section 24.09. Union Business. Leaves of absence without pay for Union business will be granted to Bargaining Unit employees of the Company, not to exceed one (1) week, who are elected or appointed by the Union, to attend such functions as conferences, conventions, and Union educational courses, provided at least 10 (10) workdays advance notice is given in writing to the Company and approved. However, not more than one (1) employee may be on such leave at any time. These periods will not be consecutive weeks.

Section 24.10. Bereavement. In case of the death of a member of the immediate family of an employee, the employee shall be granted a maximum of three (3) scheduled workdays off with straight time pay to attend the funeral and tend to

administrative details. For purpose of this Article, "immediate family" shall mean legal spouse and brother, sister, child, parent, grandchild, grandparent and step or in-law relations of any of the above. For purposes of this Article, a half-brother or half-sister shall be treated the same as a brother or sister. The employee must provide reasonable verification of death.

If an employee must attend funeral services which include travel greater than 400 miles, and less than 600 miles, one (1) additional day without pay will be granted for immediate family. To be granted the additional one (1) day, without pay, employee must provide verification of services attended.

If an employee must attend services which include travel greater than 600 miles, two (2) additional days, without pay, for immediate family shall be granted. To be granted the additional two (2) days without pay, employee must provide verification of services attended.

In the event other members of the employee's family should die, the employee will be granted a maximum of two (2) scheduled workdays off without pay to attend the funeral and tend to administrative details. Other members of the employees' family shall be aunts, uncles, nephews, nieces, cousins, etc. The Company will grant the employee unused accrued PTO in lieu of non-paid time off. The Company may require reasonable proof of death.

Section 24.11. The Company shall grant three (3) additional workdays off, without pay, in the event of the death of members of the employee's immediate family as defined in Section 1, at the employee's request or the employee may use PTO for which they are eligible.

Section 24.12. Jury Duty/Witness Pay. When an employee is summoned for jury duty, he will provide such notice to the Company as soon as possible. If the employee is required to report to the court for three (3) hours or more, the employee will not be required to report to work. The employee shall be granted pay for his regular work shift, less any fee or other compensation paid to the employee by the court. Pay for such time lost shall be up to eight (8) hours per day and forty (40) hours maximum per year. An employee must present to the Company a statement from an official of the court attesting to dates served, time served, and fees paid before any jury duty payment will be made.

Employees who report to work having less than three (3) hours of jury duty for that day will be allowed to complete the number of hours regularly scheduled for that day unless management instructs such employee to remain beyond that time. Employees paid for a full shift of jury duty will not be eligible to work or overtime on that day unless call-in or call-back provisions apply.

Section 24.13. Any employee subpoenaed or otherwise required to serve as a witness in either a Federal, State, County, or Municipal Court, in which he is not a direct participant, may take leave without pay for those hours which he is absent.

Section 24.14. An employee must have served his probationary period in order to qualify for jury duty pay.

Section 24.15. To receive jury duty pay, the employee must promptly notify the Company so as to provide time in which to process a request for his release. Any delays, beyond the control of the employee, in the processing of the aforementioned stated request shall not adversely affect the employee in pay or disciplinary matters.

Section 24.16. Voting Time. Two working days prior to the election day, an employee who is a registered voter and scheduled to work all hours the voting booths are available, may request to be granted two (2) hours off at the beginning or end of his standard daily work schedule to vote in a national, state, or local election, whichever allows the freest time for voting and the least time off from your regular working shift. The employee shall arrange with the Program Manager or direct supervisor to take such time off at a time when the polls are open and when it will least interfere with the operation of the Company. The Program Manager or direct supervisor, at their sole discretion, will decide when the time off will occur. Such time off will be paid time.

ARTICLE 25

Hours of Work

Section 25.01. No provision of this agreement shall be considered as a guarantee of any specified number of hours of work, either per day or per week.

Section 25.02. A normal shift will consist of five (5) eight (8) hour days during the seven day week of Sunday to Saturday. The five (5) work days and/or the two (2) days off are not required to be consecutive. The employee will log forty (40) hours per week of time worked, holiday or PTO.

Section 25.03. A normal work schedule will consist of a normal work shift for five days, forty (40) hours. Customer requirements will generally dictate the need for special work schedules. Such alternative workweek will be negotiated by the parties prior to implementation.

Section 25.04. Shifts will be standardized to meet customer needs. Normal shift starting times will be determined by management, posted in the effected work area and communicated to all affected employees.

The Company workday, utilized for determining when daily overtime is due, shall be defined as a consecutive 24-hr period beginning at 12:00 A.M. and ending at 11:59 P.M each day

- A. In the event certain non-standard shift starting times are required, they will be communicated to the persons affected as soon as reasonably known.
- B. Temporary changes in starting time for individuals due to customer requirements, emergencies or unusual circumstances shall not constitute a change in shift starting time and shall be communicated in a timely manner.

C. In the event other types of work schedule designs are contemplated by management or the customer, the parties will meet to work out any details of such schedule and determine the application of the provisions of this Agreement to such schedule.

Section 25.05. All employees will receive two (2) uninterrupted paid fifteen minute breaks per day and one (1) thirty (30) minute unpaid lunch per day. The timing for the break will be coordinated and approved by the direct lead.

Section 25.06. The payroll week shall start at 12:00 a.m. each Sunday and end at 11:59 p.m. the following Saturday. Employees are paid bi-weekly.

Section 25.07. Shift differentials are established for the Firing Desk personnel on the evening shift, \$0.50 per hour and for the night shift, \$1.00 per hour. Employees that work on Saturday and/or Sunday will receive an additional \$0.50 per hour in addition to any applicable shift differential.

Section 25.08. Base Closure. When the site is closed at the direction of the Customer, because of unexpected circumstances or safety concerns (fire, earthquake, tsunami, power outage, etc.) employees will receive their regular base rate of pay, for up to eight (8) hours. Employees designated "Essential Personnel" will report for work as directed, if feasible.

ARTICLE 26

Overtime

Section 26.01. Overtime will be paid when hours worked exceeds 40 hours for one week of work. Forty hours is calculated as hours worked. Holiday, vacation, and sick time are not used to calculate for overtime.

Section 26.02. Overtime other than the scheduled weekends shall be on a voluntary basis to the extent possible. When there are an insufficient number of qualified volunteers the Company may require qualified employees to work overtime. Required overtime will be assigned in reverse order of seniority among qualified and certified employees. Whenever possible the Company will give at least twenty-four (24) hour notice for the overtime work.

Section 26.03. For the purpose of this Section, hours worked does not include paid holidays, vacation, sick or other non-work hours.

ARTICLE 27

Report Time and Call-In Pay

Section 27.01. Each workday an employee is required to report to work but is not put to work or is furnished with less than four (4) hours of work shall be paid at least four (4) hours at his/her regular rate of pay.

Section 27.02. If an employee is required to report to work a second time in any one workday and is furnished less than four (4) hours of work on the second reporting, he or she will be paid for four (4) hours at his or her regular rate of pay, overtime rates may apply.

ARTICLE 28

Temporary Duty Assignments (TDY)

Section 28.01. Selection of employee(s) to Temporary Duty Assignments shall be prioritized by required qualifications from seniority-based rotation list. Employees with required qualifications will first be selected by the Sr. Operations Tech or Facilities Maintenance Manager. Once the TDY assignment has been completed, that individual(s) shall be placed at the bottom of the list for any future TDY tasks. The purpose of the rotation list is to give every qualified employee an opportunity for TDY assignment.

Section 28.02. All employees in the bargaining unit are subject to TDY assignments.

Section 28.03. The Company will provide Bargaining Unit employees, who are required to travel out of town on Company business, with payment of per diem and costs in accordance with the most current Joint Travel Regulations (JTR), this will include Long-distance travel which exceeds the distance of 100 miles one-way or a one-day trip that exceeds eight (8) hours in duration, and overnight stays. The Company will make every effort to reimburse the employee's out of pocket expenses within fifteen (15) workdays after the employee submits a valid expense report, or no more than twenty (20) calendar days, unless the Company pays the employee in advance the per diem rate of the Temporary Duty Assignment.

ARTICLE 29

Holidays

Section 29.01. All employees covered by this Agreement shall receive eight (8) hours pay at their regular hourly earnings.

In order to be eligible for holiday pay, an employee must be in active paid status for the following holidays:

New Year's Day
Martin Luther King Jr. Birthday
President's Day
Memorial Day
Labor Day
Juneteenth

Columbus Day
Veteran's Day
Thanksgiving Day
Independence Day
Christmas Day

Section 29.02. Such Holiday(s) worked may be deferred and observed on another day if agreed upon by the employee(s). Employees will not receive Holiday Pay if the Holiday falls on a regularly scheduled workday and the Holiday is deferred

and observed on another day. The Supervisor will make every effort possible to grant the employee's requested day off. If not able to accomplish the requested deferred day off, the reason for denying will be provided by the manager and an alternate day will be discussed and considered.

Section 29.03. Any holiday which falls on a Sunday shall be observed on the following Monday. Any holiday which falls on a Saturday shall be observed on the preceding Friday. Observance may vary according to U.S. Army scheduling.

Section 29.04. If a holiday falls within an employee's PTO period, such holiday shall not be considered as part of the PTO period nor counted as a PTO day used.

Section 29.05. Any employee called in and reporting for work on any of the holidays above or the days on which they are observed, shall be guaranteed four (4) hours of work or four (4) hours at the Holiday rate of pay in lieu thereof.

Section 29.06. In addition to the above holidays presently recognized the Company agrees to observe any holidays declared as a legal holiday by Congress or Presidential Executive Order and observed by the Military at no cost to the Company if non-reimbursable.

ARTICLE 30 Vacation

Section 30.01. Length of service for vacation purposes shall be determined by either the employee's Bargaining Unit seniority or their length of continuous service with the Company, whichever is greater.

Years of Service	Annual Accrual Hours	Accrual per Pay Period
Zero (0) but less than five (5)	80	3.076
Five (5) but less than eleven (11)	120	4.615
Eleven (11) or more	160	6.154

Section 30.02. All vacation will be paid at the regular rate of pay. Vacation will accrue bi-weekly, from the first week of service. When an employee moves to the next level of accrual, it is understood that the new accrual rate will begin on the first day of the next full pay period. It is the intent of the Company that Employees will use their vacation and not carry over hours to the next year. It is the responsibility of the employee to manage their vacation and fully utilize the hours available. If employees are denied vacation, they will be allowed to carry over a maximum of 80 hours or be paid for them at the end of the year. All vacation paid for unused hours will be at the employee's regular labor rate of pay. Cash in lieu of paid time off or carry over of excess vacation hours may be approved by Company President (or designee) and will be based on sufficient justification by the employee as to why the vacation hours

could not be used or additional carry over hours are necessary. Employees must complete their probationary period to be eligible to schedule vacation time. For the purpose of this agreement, the anniversary date for carry-over of vacation shall be the employee's anniversary date on the contract.

Section 30.03. All unused accrued vacation balances will be paid out upon termination/retirement or death.

Section 30.04. Vacation scheduling requests must be made in writing to their supervisor two weeks prior to the vacation start date. The Company reserves the right to approve or deny vacation requests based on business operations and upon the timing of multiple vacation requests for the same period. Concurrent vacation requests will be approved in order in which they are received. Vacation may be used in increments of no less than one (1) hour.

Section 30.04. Vacation will be vested as it is earned.

ARTICLE 31

Sick Time

Section 31.01. Employees shall receive a maximum of seven (7) days (56 hours per year) of paid sick leave annually for family care and absences including absences related to domestic violence, sexual assault, and stalking. Sick time shall accrue, for employees actively on the payroll, at a rate of 2.15 hours per pay period with a maximum of fifty-six (56) hours per year and/or available at any time.

Section 31.02. For the purpose of this agreement, the anniversary date for carry-over of sick leave shall be the employee's anniversary date on the contract. Sick leave balances shall be reflected on payroll summaries each pay period. Any sick leave balances shall be carried over to new accrual periods with a maximum balance of fifty-six (56) hours as specified in Section 1.

Section 31.03. Sick leave balances shall not be paid to employees upon separation of employment, however, employees returning to employment with twelve (12) months shall have sick time balances reinstated.

Section 31.04. Sick leave may be used for any purpose in compliance with Executive Order 13706 (EO 13706).

ARTICLE 32

Wages

Section 32.01. During the term of this Agreement, each employee shall receive wage increases in accordance with the pay chart in this Article.

Section 32.02. In the event an employee is temporarily assigned to act in a supervisory role in a classification for which the rate of pay is higher than the pay received by the employee in his regular classification, he shall receive the higher

rate of pay for such hours worked in the higher classification. In the event an employee is assigned to work temporarily in a classification lower than his regular classification, he shall receive his regular rate of pay.

Section 32.03. Travel Time and Expenses.

- A. When an employee is required to work away from Fort Rucker, AL on the AGRC contract, he shall be paid the appropriate hourly rate for time spent traveling in addition to transportation costs, if any.
- B. If an employee is sent to work out of town, he shall receive, in addition to the above, transportation, board, lodging, etc. as per current JTR guidelines.

Section 32.04. For this Agreement, an employee's straight time hourly rate is defined as the employee's base rate as listed in the Pay Chart in this Article, and any other such premiums agreed to as part of this Agreement.

Section 32.05. The Company shall pay all employees covered by this Agreement bi-weekly.

Section 32.06. Starting July 1, 2022 employees assigned to perform lead duties will be paid an additional \$1.00 per hour for hours worked (does not include time off) above their Base Hourly Pay.

Pay Chart
Wage Rates*

Labor Category	Current Rate	2022 Rate	Effective June 18, 2023
Carpenter, Maintenance	\$18.42	\$19.34	\$21.34
Electronics Technician III	\$26.48	\$27.80	\$29.80
Firing Desk Safety	\$17.94	\$20.94	\$22.94
Firing Desk Safety, Lead	\$20.08	\$23.09	\$25.09
General Maintenance Worker	\$16.92	\$17.77	\$19.77
GIS/AVOID Analyst	\$26.02	\$27.32	\$29.32
Grounds Laborer	\$10.09	\$15.75	\$17.75
Heavy Truck Driver	\$21.60	\$22.68	\$24.68
Heavy Equipment Operator (HEO)	\$16.65	\$17.48	\$19.48
Maintenance Trades Helper	\$15.19	\$15.95	\$17.95
Operations Tech, Lead	\$24.86	\$26.10	\$28.10
Production Control Clerk/QC	\$21.98	\$23.08	\$25.08
Range Tech, Lead	\$22.48	\$23.60	\$25.60
Supply/Inventory Tech	\$22.48	\$31.45	\$33.45
Technical Writer	\$24.86	\$26.10	\$28.10
UXO III	\$37.13	\$38.99	\$40.99

Evening Shift \$0.50
 Night Shift \$1.00
 Weekend Differential \$0.50

1300-2000 Hours
 2130-0600 Hours
 Saturday/Sunday

Lead Pay \$1.00 Per hour

An increase of \$1.10 will be added to base rates for year two (2024) and \$1.00 for year three (2025), and \$0.90 for year four (2026).

ARTICLE 33

Health and Welfare

Section 33.01. Employees will be offered health and welfare benefits for the term of this agreement. The current package of benefits shall include:

- Medical/Dental/Vision Insurance
- Company Paid Life and AD&D Insurance (\$50,000- employee only)
- Voluntary Life for Employee and Dependent Life and AD&D Insurance
- Short Term Disability Insurance (benefit maximum to be at least \$1,000.00/week)

The benefit levels available and employee cost sharing amounts are described in the respective plan documents and enrollment materials. The health and welfare payment as described below may be used to purchase Health/Dental/Vision Insurance for the employee and his/her family. Any unused portion of the health and welfare will be paid directly to the employee as wages.

Section 33.02. For the Health & Welfare of employees, the company shall pay the amount indicated below for all hours paid up to a maximum of two-thousand eighty (2080) per year, and up to eighty (80) hours per bi-weekly pay period for those who choose to participate in Company's insurance benefits:

Effective June 18, 2023

All employees not participating in Medical coverage	\$4.41
Employees participating in Medical coverage	\$7.00

Deductions from the H&W amount include Medical, Dental, Vision, 401k matching contributions, optional Life, and basic Life and AD&D insurance (not voluntary). If the cost of the benefits selected are in excess of the H&W amount, the Employee is responsible for the excess amount. If the cost of the benefits selected are lower than the H&W amount, the Employee will receive the remainder as additional compensation. Employees must provide evidence of coverage elsewhere to opt out of the Company's medical insurance plan.

ARTICLE 34
Retirement Plans

Section 34.07. 401K savings plan. Bargaining unit employees may participate in the Company's 401K Savings Plan as described in the Plan Documents and Rules, on a voluntary basis. There will be a 50% Company discretionary or matching contributions to this plan on behalf of employees covered by this Agreement up to the first six (6) percent of the employee's working rate.

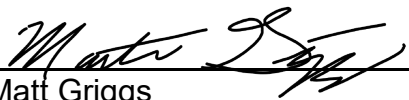
ARTICLE 35
Duration

Section 35.01. Except as is specifically otherwise provided herein, this Agreement shall become effective March 6, 2023, and shall remain in effect until December 15, 2026. This Agreement shall continue in effect from year to year thereafter unless notice is given in the manner provided in Section 34.02

Section 35.02. Within thirty (30) days of the receipt of any such notice to terminate and negotiate a new Agreement, or to modify the Agreement, the Union and Company shall commence negotiations unless it is mutually agreed to extend the number of such days beyond thirty (30).

In witness whereof, the parties have caused this agreement to be executed by their respective duly authorized representatives this 2nd day of March 2023.

For the Union:



Matt Griggs
Business Representative, DL 75
International Association of Machinists
And Aerospace Workers



Kristiopher Ross
Negotiation Committee Member

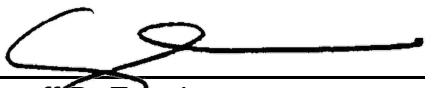


Mark Simmons
Negotiation Committee Member

For the Company:



Dennis T. Krupp
President
Diverse Technology Korps, Inc



Geoff DeZavala
SVP/COO
SA-TECH, Inc